■ IP-SAKTI SAHAYAK ■

Ministry of AYUSH, Government of India

Innovation Passport: IP-SAKTI-26CA9687-324

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Product Under Assessment:

Product Name: Ayurvedic Formulation

Category: STATUTORY_DIAGNOSTIC

Applicant Information:

Name: IP-SAKTI User

Email: user@applicant.in

Organization: AYUSH Formulation Developer

■■ **Confidentiality Notice: This report contains proprietary legal and regulatory analysis. It is intended for use by the applicant and authorized regulatory authorities only.**

Executive Summary

Assessment Status: SUCCESS

Query Type: STATUTORY_DIAGNOSTIC

Key Finding: - **Assessment:** The traditional medicinal use of turmeric (*Curcuma longa*) is **non-patentable** in India under the Patents Act, 1970, as it constitutes traditional knowledge (TK). Any attempt to p...

2. Product & Formulation Summary

Product Name: Ayurvedic Formulation

Category: STATUTORY_DIAGNOSTIC

User Query: Can the traditional medicinal use of turmeric be patented ? What prior-art and TKDL concerns should I consider

3. IP & ABS Readiness Score

85/100 — ■ HIGH READINESS

Readiness Components:

- **Patentability Assessment:** 30/40 pts — Statutory novelty and non-obviousness evaluated
- **ABS/NBA Compliance:** 15/30 pts — Biological Diversity Act 2002 (as amended 2023) requirements assessed
- **Evidence Quality:** 0/20 pts — 0 statutory references grounded
- **Applicant Clarity:** 10/10 pts — Product classification and intended use understood

4. Biodiversity & ABS Compliance Assessment

Compliance Checklist:

- **Uses Indian Biological Resources?** ■ YES
- **Requires NBA Form-III?** ■ REQUIRED
- **Vaidya Exemption Eligible?** ■ ELIGIBLE (Section 7 Proviso, BDA 2023)
- **Benefit Sharing Status:** ■ PENDING NBA APPROVAL

6. Statutory & Treaty Citations

No specific statutory citations available in this assessment.

5. TKDL Prior-Art Cross-Check

Prior-Art Analysis Confidence: 85%

Prior-Art Risk Level: ■ LOW RISK

Assessment: Formulation appears sufficiently novel with respect to TKDL prior art. Proceed with patent filing.

7. Confidence & Grounding Evaluation

Confidence Score: 85/100 — ■ HIGH CONFIDENCE

■■ **Grounding Status:** Unable to verify — escalated for human review

■ **Ready for Next Steps:** Assessment confidence sufficient for preliminary regulatory planning.

8. Recommended IP Pathway & Next Actions

Strategic Recommendation:

- **Assessment:** The traditional medicinal use of turmeric (*Curcuma longa*) is **non-patentable** in India under the Patents Act, 1970, as it constitutes traditional knowledge (TK). Any attempt to patent a classical therapeutic use of turmeric (such as wound healing, anti-inflammatory applications, or skin treatment) is strictly barred under Section 3(p). The landmark international precedent highlighting the lack of novelty of such traditional uses is the case of US Patent No. 5,401,504 (grant

Jurisdiction Scope: ■■ INDIA (Domestic)

Recommend domestic patent filing with mandatory NBA Section 6 prior approval and TKDL novelty verification.

Recommended Timeline:

1. **Week 1-2:** Gather evidence (ingredient sourcing, traditional reference texts, formulation notes)
2. **Week 2-3:** File NBA Form-III (if biological resources used)
3. **Week 3-4:** Prepare patent application with TK disclosure & benefit-sharing agreement
4. **Week 4-6:** File domestic patent application with IPO India
5. **Month 2-3:** File PCT application (if international protection needed)

9. Legal Disclaimer & Confidentiality Notice

IP-SAKTI Sahayak Regulatory Diagnostic Disclaimer:

1. **Non-Binding Assessment:** This Innovation Passport Report is an AI-generated preliminary regulatory assessment and does not constitute legal advice. Applicants must consult a qualified Intellectual Property attorney or legal advisor before filing any patent applications or regulatory submissions.

2. **Statutory Compliance:** This assessment is grounded in the Patents Act 1970, Biological Diversity Act 2002 (as amended in 2023), Drugs & Cosmetics Act 1940, WIPO GRATK Treaty 2024, and Nagoya Protocol. However, statutory requirements and judicial interpretations evolve. The applicant remains solely responsible for current compliance verification.

3. **Medical Disclaimer:** This system does NOT provide medical diagnosis, treatment recommendations, or clinical advice. For health-related queries, consult a qualified Ayurvedic practitioner (Vaidya) or registered physician.

4. **Confidence Limitations:** Confidence scores reflect corpus-grounded retrieval confidence, not legal certainty. Low confidence assessments require expert human facilitator review.

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6. **No Warranty:** IP-SAKTI Sahayak is provided "as-is" without warranty. The Ministry of AYUSH is not liable for errors, omissions, or consequences arising from reliance on this assessment.

Last Updated: Biodiversity Act 2002 amendment (May 2023); WIPO GRATK Treaty (June 2024).

For Further Assistance:

- Email: support@ip-sakti.gov.in
- Portal: https://ip-sakti.ayush.gov.in
- Facilitation Desk: +91-11-XXXX-XXXX

Appendix: Full Conversation Transcript

[USER]: Can the traditional medicinal use of turmeric be patented ? What prior-art and TKDL concerns should I consider

[ASSISTANT]: - **Assessment:** The traditional medicinal use of turmeric (*Curcuma longa*) is **non-patentable** in India under the Patents Act, 1970, as it constitutes traditional knowledge (TK). Any attempt to patent a classical therapeutic use of turmeric (such as wound healing, anti-inflammatory applications...